privileged section retains all the resources including education and employment opportunities with themselves even after we become an independent country and a republic? Should we opt for an inclusive nation or an exclusive mob? What kind of social Justice we would eventually emulate?

DEBATE



- Do people ask the Government to provide a level playing field in sports?
- Does anyone seek similar intervention from the government in Private sectors, Armed forces?
- Does anyone demand that people must be treated differently in our criminal procedural system?

13.4 Distributive Justice and Retributive Justice

The substantial point of debate while studying the concept of Justice would be how the resources would be distributed to all section of the society. In order to understand this point more clearly let us dwell upon a few important perspectives on the issue of Justice. Equality of Resources, Common Ownership theories and Entitlements are often referred while discussing Justice.

A. Equality of Resources

This perspective defines distribution of resources to be just; that is to say, if every individual has the same effective resources that amounts to Justice. If, for some given work, each person obtains the same amount of wage or reward, that is how we must realize Justice.

B. Common Ownership Theories

These theorists argue that a fair distribution means each person in the initial stages must have the same amount of land or other valuable resources. It clearly means there are no major differences in terms of an individual's preferences and abilities. All individuals are endowed with equal amount of abilities.

C. Entitlements Theory

It defines just distribution when land or any other resources disbursed must be historically justified. Individuals who have never had the ownership of land or other resources can appropriate it by voluntary transfer between and among themselves. Transfer of resources, for them, must be absolutely voluntary.

All these perspectives as it is evident from the brief description do focus on both resources and human ability. Resources could be for example, land as well as knowledge; human ability also plays a vital role for some theorists. There is a grand consensus that Justice in a society is possible only when it becomes distributive rather than retributive. How do we define retributive justice?

D. Retributive Justice

The concept of retributive justice Can be understand the framework of this form of justice by following certain principles.

i). Those who have committed wrongful acts, serious crimes do deserve harsh punishment quite proportionate to their crime.

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